



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-25-254 Dry Creek Vistas – Preliminary Plat
Date: January 12, 2026

Background:

The item for consideration is a Preliminary Plat. This is approved by Acknowledgement.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 1/12/2026
- Public Services Committee 1/20/2026
- Final Consideration 1/26/2026

Planning Commission Recommendation:

The Planning Commission heard this item at their January 5, 2026 meeting and approve this application with staff recommended exception and conditions.

Staff Recommended exception and conditions:

1. Exception to be granted:
 - a. Block size exception due to natural features.
2. Concurrent with Final Plat Submittal:
 - a. Provide a vacation map to the City to initiate the full vacation of Frank Court, OR include all owners adjacent to Frank Court in the platting action.
 - b. Clarify/verify owner and dedication information.
3. On the Final Plat:
 - a. Provide necessary easements.
 - b. Make minor technical corrections.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (January 6, 2026), Staff has received no inquires or comments from the public on this project. The project page on the website has received 124 views and no comments.

Attachments:

1. Planning Commission Staff Report

CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION
JANUARY 5, 2026
STAFF REPORT

FILE: PUDC-25-254: Dry Creek Vistas Preliminary Plat

REQUEST: A preliminary plat of 3.17 acres proposing creating three residential lots.

LOCATION: Northeast of the intersection of Frank Court and Rock Springs Street.

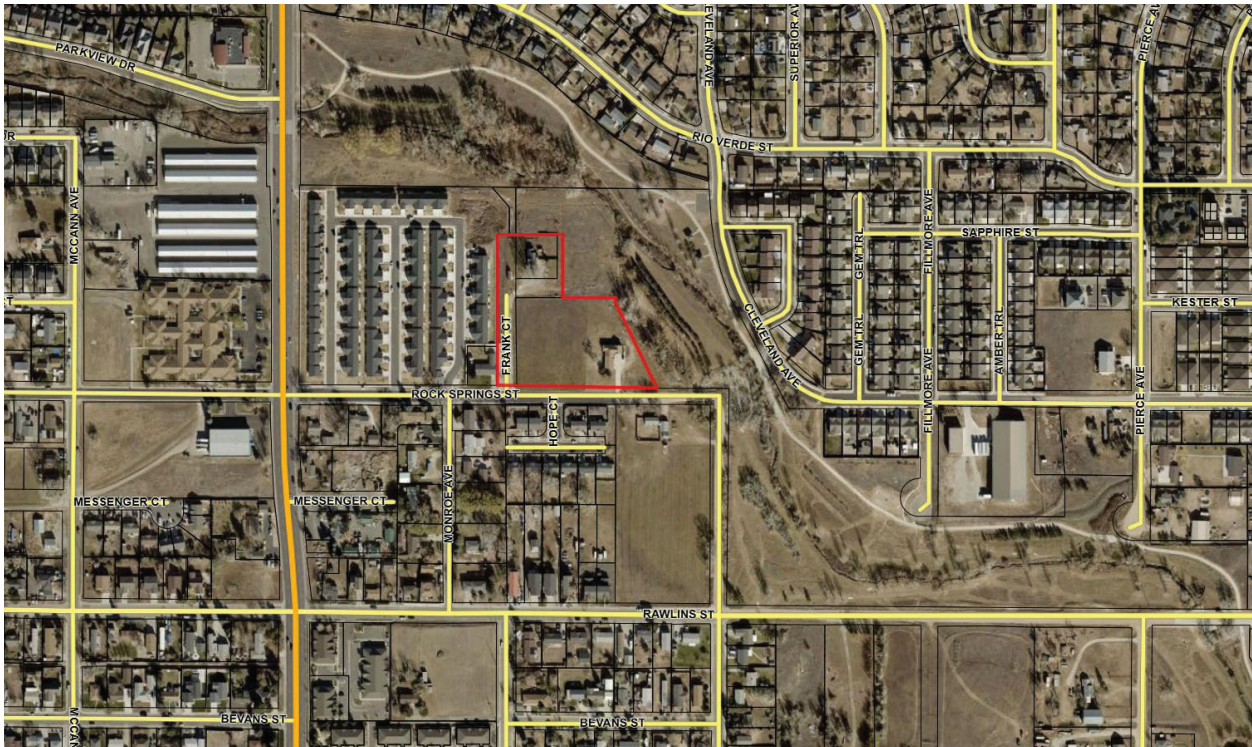
APPLICANT: Casey Palma

OWNER: JKM Properties LLC

ZONING: MR – Medium-density Residential.

PURPOSE: A preliminary plat proposing creating three residential lots.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Dry Creek Vistas Preliminary Plat, subject to staff recommended exception and conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC Article 3 Impact Studies
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for roughly 3.17 acres of land. The proposed plat would create three lots, two of which have existing single-family residences on them. The applicant had submitted for expedited review, meaning the final plat had also been submitted. Through staff's review, there were several issues that arose, such as ownership and the proposed street vacation. Due to these issues, staff is not processing this application as an expedited plat and only the preliminary plat is moving forward at this time.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR – Medium-density Residential	Single-family / vacant
North	Open Space and Parks	P - Public	Dry Creek
South	Urban Residential	MR – Medium-density Residential	Single-family
East	Open Space and Parks	P – Public	Single-family
West	Urban Residential	MR - Medium-density Residential and NR - 3 – Neighborhood Residential High Density	Townhomes / Single-family

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

- 1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)**

On the future land use map found in PlanCheyenne, the subject land and surrounding area has been designated as Urban Residential. The Urban Residential designation encourages a range of residential uses. The proposed plat creates two lots for the existing single-family homes and a third lot for residential development.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat subdivides one lot into two and also proposes vacating right-of-way and platting that into the adjacent parcels. With the proposed vacation, staff believes that the entirety of Frank Court needs to be vacated and not just a portion. A partial vacation creates a street section that does not meet UDC standards and is not a benefit. Vacation with a platting action requires all owners adjacent to the right-of-way to sign on the plat application. Not all owners with interest in the proposed-to-be-vacated rights-of-way have signed on the plat.

The application **complies** with this review criterion, with conditions.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees. Park fees are calculated at \$700 per acre. All fees are due at the time of building permit.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure. The Park Enhancement Fee for residential is \$400 per dwelling unit.

Transportation Network (4.3):

This plat proposes vacating portions of Frank Court via the platting action. The proposed vacation by the applicant only vacates half the street. Staff believes that if any portion of Frank Court is to be vacated, the entire street should be vacated. Staff does not support a partial vacation. Full vacation may be done by including all owners in the plat or by the City initiating a vacation ordinance process.

This plat includes the east-west section of Frank Court which at this time has some ownership and vacation questions that surround it. There are issues with the resolution that is referenced on the plat and more research may be needed to determine if this section has been vacated and who actually owns it.

Although this plat proposes vacating streets, the streets to be vacated are undeveloped and would not provide meaningful street connections even if built. Due to Dry Creek, block connectivity is limited in this area and reducing block size by extending the current streets or by creating new streets is not reasonable. Staff recommends granting an exception to block size.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. Due to the nature of the proposed development pattern, open space will be taken care of with future development actions.

Required Improvements (4.5):

Utilities are available within this area already. The applicant needs to provide information that future connections can be made should any of the lots need to connect to City water and sewer. Should lot 1 ever need water and sewer, easements may be needed and are not provided at this time.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion, with conditions.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage worksheet was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A transportation worksheet was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

All lots proposed for development are buildable lots in this zone districts.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

All proposed lots are proposed as buildable lots. The Plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

The previous development pattern in the area utilized wells and septic systems. The utility plan submitted by the applicant indicated that both houses are currently on wells and septic systems. If this is the case, the creation of the new Lot 3 may interfere with the locations and functions of these systems. Further information is needed to determine where existing facilities are prior to authorizing a final division of land.

If existing wells and septic systems are abandoned and easements for utilities are extended, this plat will not create any undue influence on existing or potential development. Frank Court is an under utilized right-of-way that only servers one home. The surrounding lots are developed and have access to other rights-of-way.

The application **complies** with this review criterion, with conditions.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

Discussion on water, sewer, and utilities above are pertinent to the public health. City staff is satisfied that this proposed plat would not otherwise adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on December 20, 2025
- **Posted Notice** Evidence of posted notice was provided showing that the signs were posted on December 22, 2025.
- **Internet Posting** on connect.cheyennecity.org on November 21, 2025

As of the publication of the Staff Report (December 29, 2025), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 112 views and no comments.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Technical correction
2. Vacation of all of Frank Court
3. Ownership questions
4. Utility Plan
5. Easements

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the preliminary plat application with conditions.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

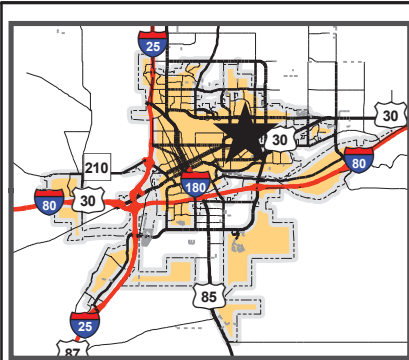
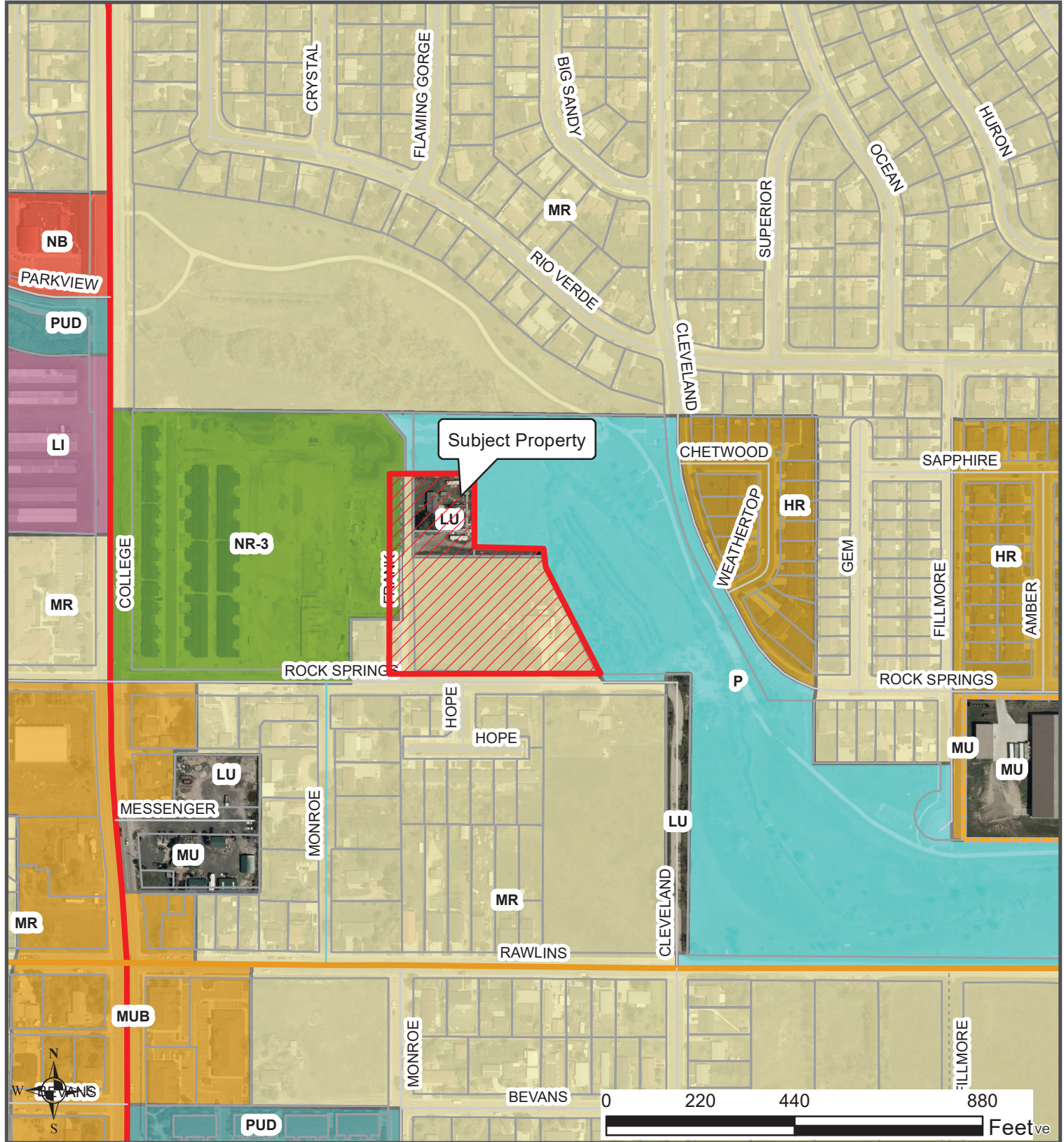
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following exception and conditions:

1. Exception to be granted:
 - a. Block size exception due to natural features.
2. Concurrent with Final Plat Submittal:
 - a. Provide a vacation map to the City to initiate the full vacation of Frank Court, OR include all owners adjacent to Frank Court in the platting action.
 - b. Clarify/verify owner and dedication information.
3. On the Final Plat:
 - a. Provide necessary easements.
 - b. Make minor technical corrections.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat

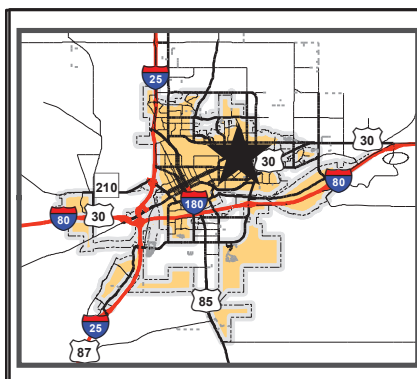
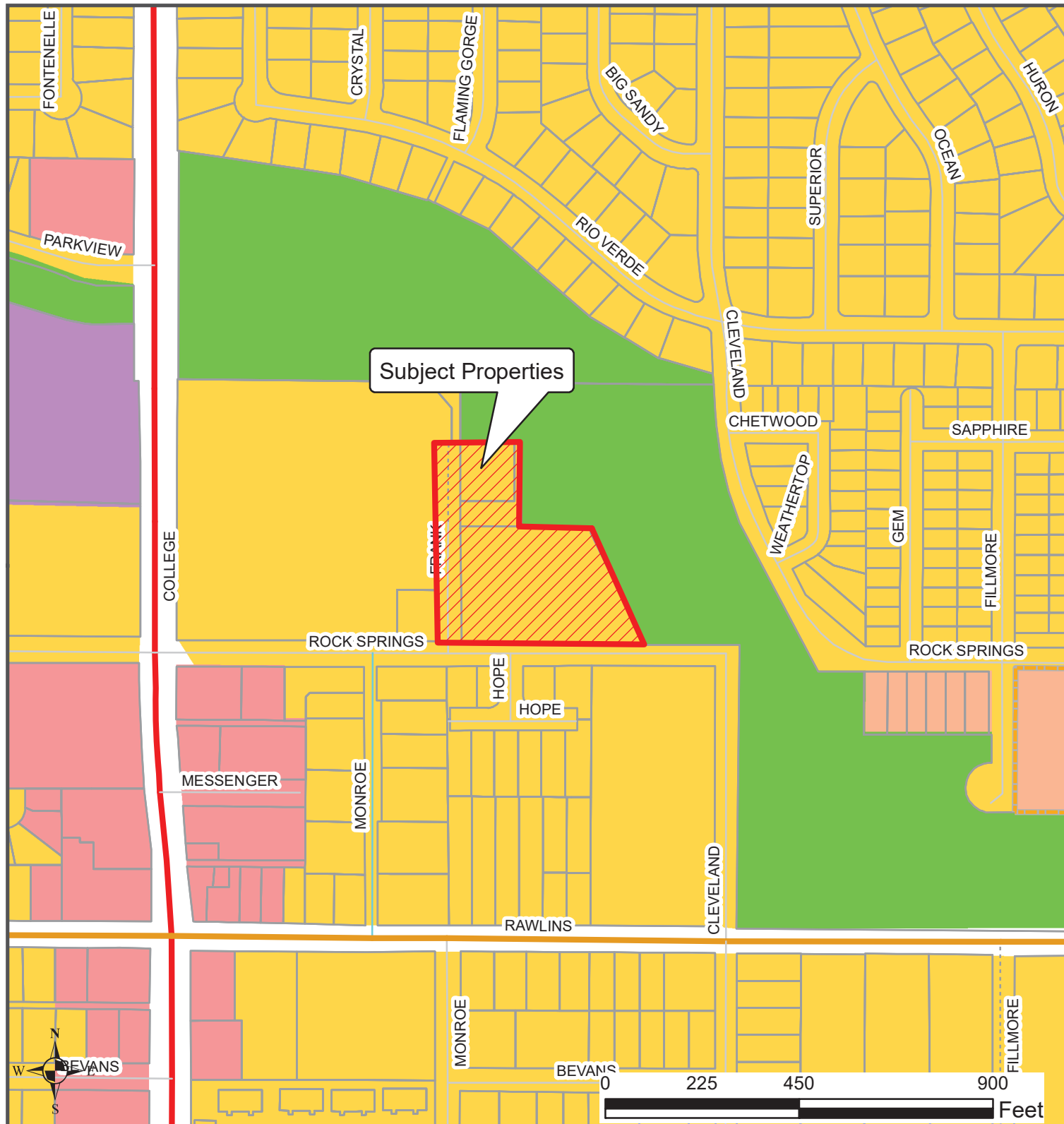


Attachment 1: Zoning Map PUDC-25-254

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-25-254

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

**Record No:
PUDC-25-254**

Plat – Expedited

Status: Active

Submitted On: 11/12/2025

Primary Location4202 FRANK CT
Cheyenne, WY 82001**Owner**JKM PROPERTIES LLC
5807 N COLLEGE DR
CHEYENNE, WY 82009**Applicant** Casey Palma
 307-996-8281
 casey@plandesignwy.com
 1775 Goodnight Trail
Suite 210
Cheyenne, WY 82007

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*



I acknowledge the that Expedited status is not guaranteed.*

**Written Statement* ?**

Application to Replat the Existing Lots (7-9, B2, Brabetz (1955)) + Remaining Portions of Tracts 311 & 312, Sunnyside, 7th Filing (1946)) to clarify and reconcile record documents and consolidate the ownership parcels into lots which correspond to built environment. This application includes vacating portions of un-utilized/unbuilt public R/W which has been maintained historically by the Owner/Applicant and has encroaching structures, the application retains a portion of the R/W containing public facilities and/or serving neighboring properties or drainage easements and an easement is provided for existing overhead transmission lines.

Project Name* ?

Dry Creek Vistas

Plat Title* ?

Dry Creek Vistas

Current Subdivision* ?

Brabetz / Sunnyside, 7th Filing

Project area (acres)*

3.17

Proposed Lots* ?

3

Pre-application Meeting Date

09/26/2025

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.* ?

All necessary infrastructure is currently in-place and built to the current standards.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Casey L Palma, AICP

Nov 11, 2025

Attachments

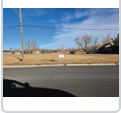
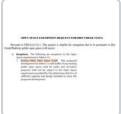
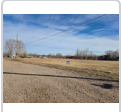


Utility Plan

SepticNote.png

Uploaded by Casey Palma on Nov 12, 2025 at 3:40 PM

REQUIRED

	Application Letter 25-250 Application Letter.pdf Uploaded by Connor White on Nov 21, 2025 at 12:20 PM	
	20251222_093731.jpg 20251222_093731.jpg Uploaded by Casey Palma on Dec 22, 2025 at 10:33 AM	
	Letter of Authorization City LOA-SIGNED-_FrankCt_2025.pdf Uploaded by Casey Palma on Nov 12, 2025 at 10:58 AM	REQUIRED
	Preliminary Plat Map 25020 PreliminaryPLAT_11-12-25.pdf Uploaded by Casey Palma on Nov 12, 2025 at 2:46 PM	REQUIRED
	Final Plat Map 25020 FINAL PLAT_11-12-25.pdf Uploaded by Casey Palma on Nov 12, 2025 at 2:46 PM	REQUIRED
	Open Space Approach 25020_OpenSpaceApproach.png Uploaded by Casey Palma on Nov 12, 2025 at 2:51 PM	REQUIRED
	Drainage Worksheet / Study 25020_DrainageWorksheet_11-12-25.pdf Uploaded by Casey Palma on Nov 12, 2025 at 3:37 PM	REQUIRED
	Transportation Workscheet / Study 25020_TrafficWorksheet_11-12-25.pdf Uploaded by Casey Palma on Nov 12, 2025 at 3:37 PM	REQUIRED
	Transportation Network Plan NotApplicable.png Uploaded by Casey Palma on Nov 12, 2025 at 3:37 PM	REQUIRED
	Pre-application meeting notes 4202_Frank_Court_Meeting_Summary_Fri_Sep_26_2025_11-53-15.pdf Uploaded by Casey Palma on Nov 11, 2025 at 12:49 PM	
	Photos of Posted Notice 20251222_093337.jpg Uploaded by Casey Palma on Dec 22, 2025 at 10:32 AM	
	Comment Letter PUDC-25-254_ApplicantRESPONSE_DryCreekVista_12-26-25.pdf Uploaded by Casey Palma on Dec 26, 2025 at 4:29 PM	
 2 Versions		

